

26SMCV01019 26SMCV01019

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-08-20

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Case Number: 26SMCV01019 Hearing Date: August 20, 2026 Dept: N

TENTATIVE RULING

Plaintiff Asset 1 Holdings LLC's Motion to Compel Responses and Document Production is GRANTED. Defendant Kimora Lee Simmons shall serve code-compliant responses to Plaintiff Asset 1 Holdings LLC's Form Interrogatories (Set One), Special Interrogatories (Set One), and Request for Production of Documents (Set One), without objections, within thirty (30) days of entry of this order.

Plaintiff Asset 1 Holdings LLC's Request for Monetary Sanctions is GRANTED in the reduced amount of \$1,200, payable by Defendant Kimora Lee Simmons and defense counsel to Plaintiff Asset 1 Holdings LLC and Plaintiff's counsel within thirty (30) days of entry of this order.

Plaintiff Asset 1 Holdings LLC to give notice.

Plaintiff served Defendant with its Form Interrogatories (Set One), Special Interrogatories (Set One), and Request for Production of Documents (Set One) on June 10, 2026. (Mot., Sanders Decl. ¶ 2.) Responses were due on or before June 17, 2026, and Plaintiff's counsel also communicated with defense counsel to extend the response date to June 22, 2026. (Mot., Sanders Decl. ¶ 3.) To date, no responses have been received. (Mot., Sanders Decl. ¶ 4.) Accordingly, Defendant Kimora Lee Simmons shall serve code-compliant responses to Plaintiff Asset 1 Holdings LLC's Form Interrogatories (Set One), Special Interrogatories (Set One), and Request for Production of Documents (Set One), without objections, within thirty (30) days of entry of this order.

If a motion to compel responses to interrogatories or requests for production is filed, the Court shall impose a monetary sanction against the losing party "unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., §§ 2030.290, subd. (c); 2031.300, subd. (c).) Further, "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed." (Cal. Rules of Court, rule 3.1348(a).)

Plaintiff requests \$2,935 in monetary sanctions for the motion. The Court finds that monetary sanctions are proper, but the Court reduces the amount to \$1,200, representing two hours spent preparing the motion and one hour spent appearing at the hearing on the motion, totaling three hours at the rate of \$400 per hour. Thus, Plaintiff Asset 1 Holdings LLC's Request for Monetary Sanctions is GRANTED in the reduced amount of \$1,200, payable by Defendant Kimora Lee Simmons and defense counsel to Plaintiff Asset 1 Holdings LLC and Plaintiff's counsel within thirty (30) days of entry of this order.